

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT IN AND FOR
HILLSBOROUGH COUNTY, FLORIDA**

CASE NO.: 25-CA-10255 **DIVISION:** [Current Division]

CHRISTOPHER HANSON, individually and as attorney for himself and attorney/next friend
for his minor children,
Plaintiff/Petitioner,

v.

THIRTEENTH JUDICIAL CIRCUIT, TRIAL COURT ADMINISTRATOR, et al.,
Defendants/Respondents. _____/

**PLAINTIFF'S VERIFIED MOTION FOR REHEARING AND RECONSIDERATION
ON JUDGE COLEMAN'S FEBRUARY 10, 2026 ORDER AND WRIT, TO ENFORCE
"PRIMA FACIE" FINDING, VACATE SUA SPONTE PROCEDURAL DELAYS
(DOCKETS #47 & #48), AND STRIKE UNAUTHORIZED PLEADING (DOCKET #55)**

COMES NOW the Plaintiff, **CHRISTOPHER HANSON**, and files this Verified Motion requesting the Successor Judge, Judge Coleman, to correct the procedural errors left unresolved by the disqualified judge, vacate orders entered without due process, strike the Defendants' untimely response filed during an unauthorized window, and issue the Writ of Mandamus based on the pleadings properly before the Court.

I. PRELIMINARY STATEMENT & PROCEDURAL POSTURE

1. **The "Procedural Trap":** On January 21, 2026, Judge Evan Frayman entered an *Order on Petitioner's Verified Motion to Vacate* (Docket #50), granting his own disqualification but explicitly refusing to rule on the primary relief requested: the vacatur of his January 13, 2026 Orders.
2. **The Result:** This left the case in a state of paralysis where orders entered in violation of due process (Dockets #47 and #48) remain active, governing the case despite being the product of the very bias that necessitated disqualification.
3. **The Successor's Duty:** A successor judge has the authority and duty to reconsider rulings made by a disqualified judge, particularly when those rulings were made *sua sponte* without notice and violated the essential requirements of law. *See Fla. R. Gen. Prac. & Jud. Admin. 2.330(h)*.
4. **The Limitation on Reconsideration (The "Party Presentation" Principle):**

- No "Roving Commission": While Rule 2.330(h) authorizes the reconsideration of prior orders, it does not grant the Successor Judge a roving commission to sua sponte reverse factual or legal findings that the parties have not challenged.
 - The Principle: Courts must rely on the parties to frame the issues for decision and act as neutral arbiters of the matters presented, not as advocates for the silent party. *United States v. Sineneng-Smith*, 140 S. Ct. 1575 (2020).
 - Application: Here, the Defendants did not move to vacate the predecessor judge's finding that a prima facie case exists [Tr. p. 13].
5. Accordingly, the finding of a prima facie case is the "law of the case."
 6. For the Successor Court to disturb that finding sua sponte and substitute his hypothetical reassessment of it at some future date repeats the very error from Judge Frayman—abandoning neutrality to raise unpled defenses—that rendered the prior orders void. See *Jones v. Sayer*, 313 So. 3d 126 (Fla. 4th DCA 2021)

II. BASIS FOR VACATING THE PROCEDURAL DIRECTIVES IN THE JANUARY 13 ORDERS

7. The procedural directives in Dockets #47 and #48—specifically the jurisdictional bifurcation and the extension of time—must be vacated because they were entered *sua sponte*, without notice, and in violation of the Party Presentation Principle.
- A. The Court Acted as "Supplemental Defense Counsel" by Raising Unpled Defenses**
8. In the *Alternative Writ* (Docket #47), the predecessor Judge *sua sponte* raised the jurisdictional defense of Rule 2.420(1) regarding "administrative records," effectively dismissing claims against individual Respondents (Ayers, Felix, Sabella) before they had even raised such an argument.
 9. **The Record:** The Respondents had already filed a *Response in Opposition* on **January 8, 2026**. That filing **did not** raise the specific jurisdictional bifurcation under Rule 2.420(1) that the Court inserted into its Order.
 10. **The Error:** It is a departure from the essential requirements of law for a trial court to *sua sponte* raise affirmative defenses or dismiss claims based on legal theories the defendants failed to plead. See *Jones v. Sayer*, 313 So. 3d 126 (Fla. 4th DCA 2021). By independently

researching and inserting this defense, the Court abandoned its neutral role and acted as an advocate for the Respondents.

11. **The Remedy:** Because the bifurcation of "administrative" vs. "court" records was not raised by the Respondents in their January 8 filing, it was waived at that stage. The Successor Judge must vacate the *sua sponte* limitation on jurisdiction and proceed on the Petition as pled.

B. The "Artificial Window": Granting Unrequested Relief

12. The Respondents were served on December 19, 2025. As noted, they filed their responsive pleading on January 8, 2026.
13. Despite the Respondents having already appeared and responded, the Court issued **Docket #48** granting them a *new* 20-day period to respond. The Respondents did not file a motion requesting this extension, nor did they claim their January 8 response was insufficient.
14. **The Obvious bias:** Judge Frayman made his bias against Plaintiff obvious on the record making this artificial window, extension, and second bite at the apple with some guidance from the Court, all the more concerning.
15. **The Legal Flaw:** There is no authority in the Florida Rules of Civil Procedure permitting a court to *sua sponte* grant a "do-over" to a judicial circuit that has already filed its response. This "artificial window" prejudiced the Plaintiff by delaying a summary Mandamus proceeding that is entitled to priority.

III. MOTION TO STRIKE DOCKET #55

16. On January 28, 2026—during the "artificial window" created by the void January 13 Order—the Attorney General filed a second *Response in Opposition* (**Docket #55**).
17. **New Arguments following instruction from the bench:** This new filing introduces arguments not raised in the January 8 response, specifically claiming "Judicial Immunity" and "Mental Impressions" [Docket #55, p. 6].
18. **The "Immunity" Fallacy:** Even if Docket #55 were timely, its reliance on "Judicial Immunity" is legally incoherent in a public records context. Judicial immunity protects judges from tort liability and monetary damages; it does not immunize public records from the constitutional right of access.
19. Rule 2.420 lists specific exemptions (e.g., judicial decision-making); **it does not list "immunity."**

20. The Respondents are attempting to conflate a tort defense with a records exemption to avoid the consequences of their failure to assert a valid exemption (and produce a privilege log) at the time of the request.
21. **Waiver:** Under Florida law, defenses not raised in the initial responsive pleading are waived. Since the order allowing the second response (Docket #48) was entered without due process and is subject to vacatur, **Docket #55 is a nullity.**
22. **Relief:** The Court must **STRIKE Docket #55** and proceed based on the pleadings as they stood on January 13: The Petition and the Defendants' January 8 Response.

IV. LIMITATIONS ON RECONSIDERATION: THE "PRIMA FACIE" FINDING IS LAW OF THE CASE

23. While the Plaintiff seeks to vacate the *procedural errors* (the delay and bifurcation), the Court must preserve the **factual and legal finding** that the Petition is facially sufficient.
24. **The Finding:** On January 13, 2026, Judge Frayman made a specific judicial determination: *"I have concluded that at least in part you have [established a prima facie case]... procedurally I'm required to issue the alternative writ"* [Tr. p. 13].
25. **No Challenge by Respondents:** The Respondents have filed no motion for rehearing or reconsideration challenging the finding that a *prima facie* case exists.
26. **The Party Presentation Principle:** Courts "rely on the parties to frame the issues for decision and assign to courts the role of neutral arbiter of matters the parties present." *United States v. Sineneng-Smith*, 140 S. Ct. 1575 (2020).
27. **Application:** Since the Respondents failed to challenge the *prima facie* finding, that finding is the **law of the case**. For the Successor Judge to disturb that finding *sua sponte* would be to repeat the very error that necessitated disqualification: acting as an advocate for the non-moving party.
28. **Scope of Order:** This Court should issue an Order that: (1) **Affirms** the finding of a *prima facie* case; (2) **Vacates** the 20-day delay; and (3) **Commands** the Respondents to produce the records or show cause immediately.

V. THE "REBRANDING" OF RECORDS PREVENTS DISMISSAL

29. Even if the Court considers the Respondents' arguments, the record demonstrates that the 13th Circuit continues to intentionally conceal public records and misapply labels to conceal

evidence the Judge made part of the record in a critical issue both still active in trial and in appeals.

30. **The Video is a "Court Record":** The April 4, 2025 video is not "security footage" (administrative). Judge Ayers offered it *on the record* to impeach testimony: "*I will go get the camera footage*" [Source: April 4 Transcript]. This offer integrated the video into the judicial proceeding as **evidence** (Court Record) under Rule 2.420(b)(1)(A).
31. **Scheduling Emails are "Administrative Records" of the Circuit Entity:** The emails regarding the Dec 13 and Jan 9 hearings concern scheduling and attendance (logistics), not adjudicative "judicial decision-making."
32. Crucially, these records are maintained by the **Defendant Court Administrator** on the Circuit's servers.
33. Because the Custodian is not the individual Judge, jurisdiction for these administrative records lies in the **Circuit Court** under Rule 2.420(1)(2), *not* the District Court of Appeal.
34. The Defendants cannot rebrand these administrative logistics as "mental impressions" to claim immunity, nor can they hide them by claiming they are personal to the Judge when they are maintained and produced by the Administrator.

VI. CONCLUSION

35. Judge Coleman again successfully delayed and obstructed enforcing compliance with the 13th Circuit's constitutional duties.
36. The Plaintiff established a *prima facie* case. The Predecessor Judge found this to be true [Tr. p. 13].
37. The Respondents answered the petition for mandamus when it was due on January 8, based on formal service of process on December 19, 2025, triggering the deadline.
38. The "delay was of [the Court's] own making" [Tr. p. 15]. The Successor Judge has the authority under Rule 2.330(h) to correct this unrequested delay, but under the **Party Presentation Principle**, the Court lacks the authority to reverse the favorable *prima facie* finding that the Respondents failed to challenge.
39. No one expressed any concern about the *prima facie* case. The Court again, *sua sponte*, interfered in Plaintiff's constitutional right of access to these simple records that were identified, but remain concealed.

40. Transparency delayed is transparency denied. The 13th Circuit has admitted the records exist but has relied on bad faith including intentional concealment and deceit through document dumping and bait switch.

RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests this Honorable Court to:

1. **VACATE** the January 13, 2026 Orders (Dockets #47 and #48) as void for lack of due process and bias.
2. **STRIKE** Defendants' *Response in Opposition* (Docket #55) as untimely and filed pursuant to a void order.
3. **ISSUE** a Peremptory Writ of Mandamus requiring Defendants to produce within 48 hours:
 - The video of the April 4, 2025 hearing (Native Format).
 - All communications regarding scheduling/attendance for the Dec 13, 2024 and Jan 9, 2025 hearings.
 - The "missing" four pages of Judge DePaul's recusal communications, and all other relief sought in the petitions and these proceedings.
4. **AWARD** attorney's fees and costs pursuant to § 119.12 due to the Defendants' bad faith "document dumping" and constructive denial

VERIFICATION

I, Christopher Hanson, declare under penalty of perjury that the facts stated herein are true and correct.

/s/ Christopher Hanson
Christopher Hanson
Florida Bar No. 44094
727-409-5738
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CERTIFICATION OF SERVICE

I hereby certify that a true and correct copy of the foregoing motion was served via the efilings system on February 16, 2026.

/s/ Christopher Hanson
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